

FEDERAL MARITIME COMMISSION

-----X
SMARTSTONE PRIVATE LIMITED

Claimant,

Formal Docket no. 1946 (F)

-against-

GENERAL NOLI USA, INC., and SAVINO
DEL BENE FREIGHT FORWARDERS (INDIA)
PVT LTD,

Respondent.
-----X

SUBMISSION OF DOCUMENTS AGAINST ORDER TO SUPPLEMENT THE RECORD.

Claimant Smartstone Private Limited by its dully qualified representative Aditya Mittal Director hereby submits its response to Administrative Law Judge Erin M. Wirth's order to Supplement the record dated February 27, 2015.

As per order for submitting copies of all the documents to supplement the record in this case, we are hereby submitting scanned certified documents and facts pertaining to this case as under:

01. List of officers of Smartstone on the date of shipment and on the date of filing the complaint.

- A. Please find attached **Annexure I** (list of officers at Smartstone on 03.01.2012 date of shipment)
- B. Please find attached **Annexure II** (list of officers at Smartstone on 05.08.2014 date of filing of complaint)

02. Evidence regarding the present status of shipment.

Please note that the container was delivered to the buyer on the 28th of February 2012. Find attached **Annexure III** (copy of the confirmation of delivery of the container to the buyer on 28th February 2012 as per email dated 20.05.2014 received from respondents Savino Del Bene and General Noli confirming that the container was delivered to the said buyer)

03. Evidence supporting our allegation that respondents released the shipment without collecting the original Bill of Lading.

Though all the three original negotiable Bill of Lading pertaining to this shipment are still physically lying with us at our office the cargo was delivered to the buyer establishing clearly that the cargo was delivered without collecting the original Bill of Lading. Please find attached **Annexure IV** (copy of original negotiable Bill of Lading). Incase you want we can submit all the three original negotiable bill of ladings to your kind office.

04. Documents demonstrating the value of the cargo and supporting each and every claim for damages

- A. Please find attached **Annexure V** copy of the commercial invoice showing the value of the goods under the said consignment to be USD 22191.07 establishing claim value for goods at USD 22191.07
- B. Please find attached **Annexure VI** copy of our current bank statement showing clearly that our bankers State Bank of India N.S Road Branch charges us 14.50 % interest per annum establishing suitable interest rates for the claim.

05. Evidence regarding the relationship between the respondents

Please find attached **Annexure VII** copy of the Bill of Lading issued by Savino Del Bene Freight Forwarders (India) Pvt Ltd in India on behalf of General Noli USA Inc showing clearly that the respondents are business associates and working with one another.

06. Documents which refer to claimants cargo

- A. Find attached **Annexure VIII** copy of Bill of Lading
- B. Find attached **Annexure IX** copy of Fumigation Certificate
- C. Find attached **Annexure X** copy of Bill of Exchange
- D. Find attached **Annexure XI** copy of the Insurance Certificate

07. Proof showing the respondents are marine terminal operators.

- A. Find attached **Annexure XII** copy of the licensed freight forwarder details for respondent no. 1 printed from your website showing clearly that respondent no. 1 General Noli USA Inc is an NVOCC licensed by Federal Maritime Commission FMC Organisation No 18143NF and is under the Jurisdiction of the Federal Maritime Commission as per Shipping Act 1984.

B. Find attached **Annexure XIII** copy of the licensed freight forward details for respondent no. 2 printed from your website showing clearly that Savino Del Bene India Pvt Ltd is an agent of Savino Del Bene USA licensed by Federal Maritime Commission Organisation No. 18653NF and is under the jurisdiction of Federal Maritime Commission as per Shipping Act 1984.

Date : Bangalore, Karnataka, India
March 20, 2015

Smartstone Private Limited
For SMARTSTONE PRIVATE LIMITED

By: 
Aditya Mittal
(Director)

Plot No. 218, Bommasandra,
KIADB Industrial Area,
3rd Phase Anekal Taluk,
Bangalore – 560099
Karnataka, India
Tel : +91 9845200159
E-mail – smartstone@vsnl.net



REGD. OFFICE : # 218, Bommasandra, KIADB Industrial Area, 3rd Phase, Anekal Taluk, Bangalore - 560 099, INDIA.
Tel : +91 80 27835367, 27835368 Fax : +91 80 27835147 E-mail : smartstone@vsnl.net Website : www.smartstoneindia.net

LIST OF OFFICERS AT SMARTSTONE ON 03.01.2012 DATE OF SHIPMENT :-

1. MR. ADITYA MITTAL – DIRECTOR
2. MRS. SHAKUNTALA MITTAL – DIRECTOR
3. MR. R.K.MITTAL – C.E.O.
4. MR. UDAL SINGH – PLANT MANAGER

A handwritten signature in blue ink, which appears to read 'Aditya Mittal', is written over a circular purple stamp. The stamp contains the text 'SMARTSTONE (P) LTD.' around the top inner edge and 'Bangalore' around the bottom inner edge, with two small stars on either side of the word 'Bangalore'.



REGD. OFFICE : # 218, Bommasandra, KIADB Industrial Area, 3rd Phase, Anekal Taluk, Bangalore - 560 099, INDIA.
Tel : +91 80 27835367, 27835368 Fax : +91 80 27835147 E-mail : smartstone@vsnl.net Website : www.smartstoneindia.net

LIST OF OFFICERS AT SMARTSTONE ON 05.08.2014 DATE OF FILING OF COMPLAINT :-

1. MR. ADITYA MITTAL – DIRECTOR
2. MRS. SHAKUNTALA MITTAL – DIRECTOR
3. MR. R.K.MITTAL – C.E.O.
4. MR. UDAL SINGH – PLANT MANAGER

A handwritten signature in blue ink, which appears to read 'Aditya Mittal', is written over a circular purple stamp. The stamp contains the text 'SMARTSTONE (P) LTD.' around the top inner edge and 'Bangalore' at the bottom, with two small stars on either side of the word 'Bangalore'.

smartstone

From: "Kishore Babu Kotte - Savino Del Bene India Pvt. Ltd Bangalore"
<kishore.kotte@savinodelbene.com>
To: <smartstone@vsnl.net>
Sent: Tuesday, May 20, 2014 1:00 PM
Subject: PROOF OF DELIVERY FOR EXPORT SHIPMENT FROM BANGALORE TO HOUSTON
SHIPPER: SMART STONE C'NEE: EXPO GRANITE MARBLE

Hi,

I haven't recvd any message about this.

I see our brokerage div. (Jill) sent out the d/o to Expo's trucker Feb 28th 2012.

Thanks
John

Hi Kishore,

This shipment is so old that shipping line does not have the tracking on their website anymore but we are positive that this has been picked up; otherwise, this container would have been considered abandoned or went to G.O. warehouse. For either case, the shipping line would have notify us something.

John,
Please double check and let me know if you had been notified something about this container.

Best regards,

Wei

General Noli USA Inc.

Dear Wei Hu,

Whether c'nee taken delivery for the same or not confirm

Thanks & Regards

Kishore Babu.K

Air & Sea Export Operation

Savino Del Bene - Bangalore

#409 1st Floor, Sawera Apartment, 1st Stage, 3rd Block, HBR Layout,
Bangalore - 560043, India

Ph +91 80 43441000, Fax +91 80 43441004

E-mail; kishore.kotte@savinodelbene.com,

Web: www.savinodelbene.com



SAVINO DEL BENE



Please consider the environment before printing this e-mail

20/03/2015

Dear Kishore,

We do not do delivery for this customer and they hired or used their own trucker to pick up their containers.

Best regards,

Wei

General Noli USA Inc.

-

Dear all,

Kindly note we have done one export shipment in 2012
Now shipper is asking for proof of Delivery
So kindly check and do the needful, details as below

REF NO	:Q20006
SHIPPER	:SMART STONE PVT LTD
C'NEE	:EXPO GRANITE MARBLE
HBL NO	:A712005108
MBL NO	:MAEU863211443
CTNR NO	:MSKU3958997
POR	:BANGALORE
POL	:CHENNAI
POD	:HOUSTON,TX-USA
SHIPPINGINE	:MAERSK

Thanks & Regards

Kishore Babu.K

Air & Sea Export Operation

Savino Del Bene - Bangalore

#409 1st Floor, Sawera Apartment, 1st Stage, 3rd Block, HBR Layout,
Bangalore - 560043, India

Ph +91 80 43441000, Fax +91 80 43441004

E-mail; kishore.kotte@savinodelbene.com,

Web: www.savinodelbene.com



SAVINO DEL BENE



Please consider the environment before printing this e-mail

This message is for the recipients only. If you receive it in error, please notify the sender and delete it together with any attachments. For any further information, including our privacy policy please refer to <http://www.savinodelbene.com/privacy/>

20/03/2015



General Noli USA Inc.

International Freight Forwarders

International Freight Forwarders

General Noli USA Inc.
148-08 Guy R. Brewer Blvd Jamaica
11434 New York
Ph. + 1 718 995 9233
Fax. +1 718 995 8970
E-mail:

HOUSE BILL OF LADING

ORIGINAL

Shipper: SMART STONE PVT LTD., 218 BOMMASANDRA KIADB INDL AREA 3RD PHASE, ANEKAL TALUK ,BANGALORE-560099 INDIA Contact Tel +91 80 27835367 Fax +91 80		Bill of Lading No.: A712005108 FIRST ORIGINAL FMC #: 18143NF	
Consignee: TO ORDER Contact Tel Fax		File Ref.: Q20006 Issued At: HBR Layout, Bangalore 560043	
Notify: EXPO GRANITE MARBLE LLC., 1055,W SAM HOUSTON PARKWAY,SUITE 100 HOURSON,TX 77043, - U.S.A. Contact Tel Fax		For Delivery apply to: GENERAL NOLI USA - NEW YORK 148-08 Guy R. Brewer Blvd JAMAICA, NY 11413 NY 11413 NY, U.S.A. Contact Tel + 17189959233 Fax +1 7189958970	
Insurance covered by us: Yes No X			
Vessel & Voyage: MAERSK DARTFORD 1202 Port of Discharge: HOUSTON		Port of Loading: CHENNAI Place of Delivery: HOUSTON,TX-USA Shipped on Board Date: 16/01/2012 Place of Receipt: ICD -BANGALORE Pre Carriage: BY RAIL	
MARKS AND NUMBERS SHIPPERS LOAD AND STOW 01 - 07 + 01 BOX	CTNR # MSKU395899/7 TYPE 20-DR FCL SEAL 0329228 Pkgs 8	DESCR. OF GOODS 1X20' GP CONTAINER STC RANDOM POLISHED GRANITE SLABS TOTAL 07 WOODEN CRATES & 01 CARDBOARD BOX KASHMIR GOLD -2 CMS STD 42 SLABS--2814.38 SFT MADURA GOLD -2 CMS 33 SLABS--1816.26 SFT TOTAL 75 SLABS -- 4630.64 SFT SAMPLES 4"X4" ASSORTED COLOURS 50 NOS MADE OUT OF WASTE PACKED IN ONE CARDBOARD BOX INV NO:SSPL/8154/2011-12 DT:03.01.2012	GWK 19500.000 CBMS

See attached sheet ... TOTAL # 8 CRATES 19500.000 KGS

FREIGHT RATES, CHARGES, WEIGHTS SUBJECT TO CORRECTION		FREIGHT COLLECT	
TOTAL CHARGES TO BE COLLECTED		Received by carrier for shipment by ocean vessel between port of loading and port of discharge, and for arrangement or procurement of pre pre-carriage from place of receipt and on-carrier to place of delivery, where stated above, the goods as specified above in apparent good order and condition unless otherwise stated. The goods to be delivered at the above mentioned port of discharge or place of delivery, whichever applicable, subject always to the exceptions, limitations, conditions and liberties set out on the reverse side hereof, to which the Shipper and/or consignee agrees to acceptation this document. IN WITNESS WHEREOF three (3) original documents have been signed, not otherwise stated above, one of which being accomplished the others shall be void. DATED AT: HBR Layout, Bangalore 560043 ON: 16/01/2012 ISSUED BY: SAVINO DEL BENE FREIGHT FORWARDERS (INDIA) PVT.LTD	
		Declared value: Read clause concerning extra freight and carrier's limitation of liability on the reverse side hereof.	

DEFINITIONS

"Freight forwarder" (herein called FF) means Multimodal Transport Operator, Agent of the Carrier, NVOCC who issues this BL (or otherwise nominated) and is named on the face of it and assumes liability for the performance of the multimodal transport contract as a carrier.

"Merchant" means and includes the Shipper, the Consignor, the Consignee, the Holder of this BL, the Receiver and the Owner of the goods.

"Consignor" means the person who concludes the multimodal transport contract with the FF.

"Consignee" means the person entitled to receive the goods from the FF.

"Taken in charge" means that the goods have been handed over to and accepted for carriage by the FF at the place of receipt evidenced in this BL.

"Goods" means any property including live animals as well as containers, pallets or similar articles of transport or packaging not supplied by the FF, irrespective of whether such property is to be carried on or under deck.

1) Applicability

Notwithstanding the heading "OCEAN BILL OF LADING" (or otherwise nominated) these conditions shall also apply if more than one mode of transport is used.

2) Issuance of this BL

- By issuance of this BL, the FF:
 - undertakes to perform and/or in his own name to procure the performance of the entire transport, from the place at which the goods are taken in charge (place of receipt evidenced in this BL) to the place of delivery designated in this BL;
 - assumes liability as set out in these conditions.
- Subject to the conditions of this BL, the FF shall be responsible for the acts and omissions of his servants or agents acting within the scope of their employment, or any other person of whose services he makes use for the performance of the contract evidenced by the BL, as if such acts and omissions were his own.

3) Negotiability and Title to the goods

- This BL is issued in a negotiable form unless it is marked "non-negotiable." It shall constitute title to the goods and by endorsement of this BL, the holder shall be entitled to receive or to transfer the goods herein mentioned.
- The information in this BL shall be prima facie evidence of the taking in charge by the FF of the goods as described by such description, including a contrary indication, such as "shipper's weight, load and count," "shipper packed container" or similar expressions, has been made in the printed text or superimposed on this BL. However proof to the contrary shall not be admissible when the BL has been transferred to the consignee for valuable consideration who in good faith has relied and acted thereon.

4) Dangerous Goods and Indemnity

- The Merchant shall comply with rules which are mandatory according to the national law or by reason the International Convention, relating to the carriage of goods of a dangerous nature, and shall in any case inform the FF in writing of the exact nature of the danger, before goods of a dangerous nature are taken in charge by the FF and indicate to him, if need be, the precautions to be taken.
- If the Merchant fails to provide such information and the FF is unaware of the dangerous nature of the goods and the necessary precautions to be taken and if, at any time, they are deemed to be a hazard to life or property, they may at any place be unloaded, destroyed or rendered harmless, as circumstances may require, without compensation. The Merchant shall indemnify the FF against all loss, damage, liability, or expense arising out of their being taken in charge, or their carriage, or of any service incidental thereto. The burden of proving that the FF knew the exact nature of the danger constituted by the carriage of the said goods shall rest on the Merchant.
- If any goods shall become a danger to life or property, they may in like manner be unloaded or landed at any place or destroyed or rendered harmless. If such danger was not caused by the fault and neglect of the FF he shall have no liability and the Merchant shall indemnify him against all loss, damage, liability and expense arising therefrom.

5) Description of Goods and Merchant's Packing and Inspection

- The consignor shall be deemed to have guaranteed to the FF the accuracy at the time the goods were taken in charge by the FF, of all particulars relating to the nature of the goods, their marks, number, weight, volume and quantity and, if applicable, to the dangerous character of the goods, as furnished by him or on his behalf for insertion on the BL. The consignor shall indemnify the FF against all loss, damage and expense resulting from any inaccuracy of such particulars. The Consignor shall remain liable even if the BL has been transferred by him. The right of the FF to such an indemnity shall in no way limit his liability under this BL to any person other than the Consignor.
- The FF shall not be liable for any loss, damage or expense caused by defective or insufficient packing of goods or by inadequate loading or packing without containers or other transport units when such loading or packing has been performed by the Merchant or on his behalf by a person other than the FF, or by the defect or unsuitability of the containers or other transport units supplied by the Merchant, or if supplied by the FF a defect or unsuitability of the container or other transport unit would have been apparent upon reasonable inspection by the Merchant. The Merchant shall indemnify the FF against all loss, damage, liability and expense so caused.

6) Freight Forwarder's Liability

- The responsibility of the FF for the goods under these conditions covers the period from the time the FF has taken the goods in his charge to the time of their delivery.
- The FF shall be liable for loss of or damage to the goods as well as for delay in delivery if the occurrence which caused the loss, damage or delay in delivery took place while the goods in his charge as defined in Clause 2 a, unless the FF proves that no fault or neglect of his own, his servants or agents or any other person referred to in Clause 2 b has caused or contributed to such loss, damage or delay. However the FF shall only be liable for loss of or damage to the goods in delivery if the Consignor has made a declaration of interest in timely delivery which has been accepted by the FF and stated it in this BL.
- Arrival times are not guaranteed by the FF. However, delay in delivery occurs when the goods have not been delivered within the time expressly agreed upon or, in absence of such agreement, within the time which would be reasonable to require of a diligent FF, having regard to the circumstances of the case.
- If the goods have not been delivered within ninety consecutive days following such date of delivery as determined in Clause 6 b, the claimant may, in the absence of evidence to the contrary, treat the goods as lost.
- When the FF establishes that, in the circumstances of the case, the loss or damage could be attributed to one or more causes or events, specified in i-iv of the present clause, it shall be presumed that no such cause, always provided, however, that the claimant shall be entitled to prove that loss or damage was not, in fact, caused wholly or partly by one or more of such causes or events:
 - An Act or omission of the Merchant, or person other than the FF acting on behalf of the Merchant or from whom the FF took the goods in charge;
 - Insufficiency or defective condition of the packaging or marks and/or numbers;
 - Handling, loading, stowage or unloading of the goods by the Merchant or any person acting on behalf of the Merchant;
 - Inherent vice of the goods;
 - Strike, lockout, stoppage or restraint of labour;
- Defences for carriage by sea or inland waterways
 - Notwithstanding Clauses 6 b, 6 c and 6 d the FF shall not be liable for loss, damage or delay in delivery with respect to goods carried by sea or inland waterways when such loss, damage or delay during such carriage has been caused by:
 - Act, neglect, or default of the master, mariner, pilot or the servants of the carrier in the navigation or in the management of the ship;
 - Fire, unless caused by the actual fault or privity of the carrier, however, always provided that whenever loss or damage has resulted from unseaworthiness of the ship, the FF can prove that due diligence has been exercised to make the ship seaworthy at the commencement of the voyage.

7) Paramount Clauses

- These conditions shall only take effect to the extent that they are not contrary to the mandatory provisions of international Conventions or national law applicable to the contract evidenced by this BL.
- The Hague Rules contained in the International Convention for the unification of certain rules relating to BL's, dated Brussels Aug. 25th, 1924, or in those countries where there are already in force the Hague-Visby Rules contained in the Protocol of Brussels, dated Feb. 23rd 1968, as enacted in the Country of Shipment, shall apply to all carriage of goods by sea and also to the carriage of goods by inland waterways and such provisions shall apply to all goods whether carried on deck or under deck.
- The Carriage of Goods by Sea Act of the United States of America (COGSA) shall apply to the carriage of goods by sea, whether on deck or under deck, if compulsorily applicable to this BL, or would be applicable but, for the goods being carried on deck, in accordance with a statement on this BL.

8) Limitation of Freight Forwarder's Liability

- Assessment of compensation for loss of or damage to the goods shall be made by reference to the value of such goods at the place and time they are delivered to the consignee or at the place and time when, in accordance with this BL, they should have been so delivered.
- The value of the goods shall be determined according to the current commodity exchange price or, if there is no such price, according to the current market price or, if there are no such prices, by reference to the normal value of goods of the same name and quality.

- Subject to the provisions of subclauses 8 d to 8 i inclusive, the FF shall in no event be or become liable for the loss of or damage to the goods in an amount exceeding the equivalent of 666.67 Special Drawn Rights per package or unit (where the goods have been packed into sealed container by or on behalf of the Merchant, it is expressly agreed that each container shall constitute one package for the purposes of application of limitation of the FF's liability), or 2 SDR per kilogram of gross weight of the goods lost or damaged, whichever is the higher, unless the nature and value of the goods shall have been declared by the Consignor and accepted by the FF before the goods have been taken in his charge, or the ad valorem freight rate paid and such value is stated in the BL by him, then such declared value shall be the limit.
- Where a container, pallet or similar article of transport is loaded with more than one package or unit, the packages or other shipping units enumerated in the BL as packed in such article of transport are deemed packages or shipping units. Except as aforesaid, such article of transport shall be considered the package or unit.
- Notwithstanding the above mentioned provisions, if the multimodal transport does not, according to the contract, include carriage of goods by sea or inland waterways, the liability of the FF shall be limited to an amount not exceeding 8.33 SDR per kilogram of gross weight of the goods lost or damaged.

- When the loss of or damage to the goods occurred during one particular stage of the multimodal transport, in respect of which an applicable international convention or mandatory national law would have provided another limit of liability if a separate contract of carriage had been made for that particular stage of transport, then the limit of the FF's liability for such loss or damage shall be determined by reference to the provisions of such convention or mandatory national law.
- Unless the nature and value of the goods shall have been declared by the Merchant and inserted in this BL and the ad valorem freight rate paid, the liability of the FF under COGSA where applicable, shall not exceed US\$500.00 per package or, in the case of goods not shipped in packages, per customary freight unit.
- If the FF is liable in respect of loss following from delay in delivery, or consequential loss or damage other than loss of or damage to the goods, the liability of the FF shall be limited to an amount not exceeding the limit.
- The aggregate liability of FF shall not exceed the limits of liability for total loss of the goods.
- The FF is not entitled to the benefit of the limitation of liability if it is proved that the loss, damage or delay in delivery resulted from a personal act or omission of the FF done with the intent to cause such loss, damage or delay or recklessly and with knowledge that such loss, damage or delay would probably result.

9) Applicability to Actions in Tort

These conditions apply to all claims against the FF relating to the performance of the contract evidenced by this BL, whether the claim be founded in contract or in tort.

10) Liability of Servants and Other Persons

- These conditions apply whenever claims relating to the performance of the contract evidenced by this BL are made against any servant, agent or other person (including any independent contractor) whose services have been used in order to perform the contract whether such claims are founded in contract or in tort, and the aggregate liability of the FF and of such servants agents or other persons shall not exceed the limits of clause 8.
- In entering into this contract as evidenced by this BL, the FF to the extent of these provisions, does not only act on his own behalf, but also as agent or trustee for such persons, and such persons shall to this extent be or be deemed to be parties to the contract.
- However, if it is proved that the loss of or such loss or damage to the goods resulted from a personal act or omission of such a person referred to in Clause 10 a, done with intent to cause damage, or recklessly and with knowledge that such damage would probably result, such person shall not be entitled to benefit of limitation of liability provided for in clause 8.
- The aggregate of the amounts recoverable from the FF and the persons referred to in Clauses 2 b and 10 a shall not exceed the limits provided for in these conditions.

11) Method and Route of Transportation

Without notice to the Merchant, the FF has the liberty to carry the goods on or under deck and to choose or substitute the means, route and procedure to be followed in the handling, stowage, stowage and transportation of the goods.

12) Delivery

- Goods shall be deemed to be delivered when they have been handed over or placed at the disposal of the Consignee or his agent in accordance with this BL, or when the goods have been handed over to any authority or other party to whom, pursuant to the law or regulation applicable at the place of delivery, the goods must be handed over, or such other place at which the FF is entitled to call upon the Merchant to take delivery.
- The FF shall also be entitled to store the goods at the sole risk of the Merchant, and the FF's liability shall cease, and the cost of such storage shall be paid, upon demand, by the Merchant to the FF.
- At any time the carriage under this BL, is or is likely to be affected by any hindrance or risk of any kind (including the condition of the goods) not arising from any fault or neglect of the FF or a person referred to in Clause 2 b and which cannot be avoided by the exercise of reasonable endeavours the FF may abandon the carriage of the goods under this BL, and where reasonably possible, place the goods or any part of them at the Merchant's disposal at any place which the FF may deem safe and convenient, whereupon delivery shall be deemed to have been made, and the responsibility of the FF in respect of such goods shall cease. In any event, the FF shall be entitled to full freight under this BL and the Merchant shall pay any additional costs resulting from the above mentioned circumstances.

13) Freight and Charges

- Freight shall be paid in cash, without any reduction or deferment on account of any claim, counterclaim or set-off, whether prepaid or payable at destination. Freight shall be considered as earned by the FF at the time and when the goods have been taken in charge, and not to be returned in any event.
- Freight and all other amounts mentioned in this BL, are to be paid in the currency named in this BL, or, at the FF's option, in the currency of the country of dispatch or destination at the highest rate of exchange for bankers sight bills current for payment freight on the day of dispatch and for freight payable at destination on the day when the Merchant is notified on arrival of the goods there or on the date of withdrawal of the delivery order, whichever rate is higher, or at the option of the FF on the date of this BL.
- All dues, taxes and charges or other expenses in connection with the goods shall be paid by the Merchant. Where equipment is supplied by the FF, the Merchant shall pay all demurrage and charges which are not due to a fault or neglect of the FF.
- The Merchant shall reimburse the FF in proportion to the amount of freight for any costs for deviation or delay or any other increase of costs of whatever nature caused by war, warlike operations, epidemics, strikes, government directions or force majeure.
- The merchant warrants the correctness of the declaration of contents, insurance, weight, measurements and value of the goods but the FF has the liberty to have the contents inspected and the weight, measurements or value verified. If on such inspection it is found that the declaration is not correct it is agreed that a sum equal either to five times the difference between the correct figure and the freight charged, or to double the correct freight less the freight charged, whichever sum is the smaller, shall be payable as liquidated damages to the FF for his inspection costs and losses of freight on other goods notwithstanding any other sum having been stated on this BL, as freight payable.
- Despite the acceptance by the FF of instructions to collect freight, charges or other expenses from any other person in respect of the transport under this BL, the Merchant shall remain responsible for such monies on receipt of evidence of demand and the absence of payment for whatever reason.

- Right of Lien** The FF will exercise a lien on the shipment or on the goods, while in his possession and on any documents relating thereto at any time, for any credit amount due or overdue to the FF from the shipper, sender or any other party, even the consignee or owner of the goods, including freight, storage fees and the cost of recovering same or to prevent deterioration, and may enforce such lien in any reasonable manner which he may think fit.

15) General Average

The Merchant shall indemnify the FF in respect of any claims of a General Average nature which may be made on him and shall provide such security as may be required by the FF in this connection.

16) Notice

- Unless notice of loss of or damage to the goods, specifying the general nature of such loss or damage, is given in writing by the consignee to the FF when the goods are delivered to the consignee in accordance with clause 12, such handing over is prima facie evidence of the delivery by the FF of the goods as described in this BL.
- Where the loss or damage is not apparent, the same prima facie effect shall apply if notice in writing is not given within 3 consecutive days after the day when the goods were delivered to the consignee in accordance with clause 12.

17) Time Bar

- The FF shall, unless otherwise expressly agreed, be discharged of all liability under these conditions unless suit is brought within 9 months after delivery of the goods, or the date when the goods should have been delivered, or the date when in accordance with clause 6 d failure to deliver the goods would give the consignee the right to treat the goods as lost.

18) Partial Invalidity

- If any cause or a part thereof is held to be invalid, the validity of this BL and the remaining clauses or a part thereof shall not be affected.

19) Jurisdiction and applicable law

- Actions against the FF may be instituted only in Genoa Italy and shall be decided according to the law of this country.

MOD/04/2009

Al Hour Stamp Cancelled



For SMARTSTONE PVT LTD
C.E.O.



General Noli USA Inc.

International Freight Forwarders

International Freight Forwarders
General Noli USA Inc.
148-08 Guy R. Brewer Blvd Jamaica
11434 New York
Ph. +1 718 995 9233
Fax. +1 718 995 8970
E-mail:

ATTACHED SHEET #1 TO DOCUMENT Number: A712005108

Our Ref:Q20006

Container list:

MARKS AND NUMBERS	CTNR #	TYPE	SEAL	Pkgs	DESCR. OF GOODS	GWK	CBMS
					SB NO:6976425 DT:04.01.2012 IEC NO:0701008121 TOTAL:75 SLABS & 50 SAMPLES NET WT:18500.00 KGS		

STATE BANK OF INDIA
TRANSPORANCE OFFICE KOLKATA
1, SHANKAR DAS, KOLKATA-700001



All our stuffs Cancelled



For SMARTSTONE PVT LTD

Rana

C.E.O

For SMARTSTONE PVT LTD

Rana

C.E.O



केन्द्रीय भण्डारण निगम
(भारत सरकार का उपक्रम)
Central Warehousing Corporation
(A Government of India Undertaking)



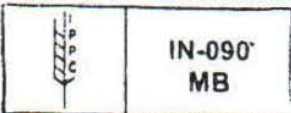
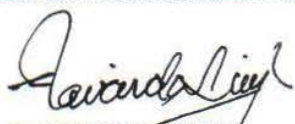
Regional Office : No. 9, Mission Road, Bangalore - 560 027

Phone : 080-22231803, 22222066, 22222231, 22233111 Fax : 080-22216885

E-mail : rmbler.cwhc@nic.in website : www.cewacor.nic.in

Phone : +91 80 2335 7065 FAX : +91 80 2335 7065 Email : trgcell.cwhc@nic.in

RECOGNISED AS FUMIGATION AGENCY BY EXPORT INSPECTION COUNCIL OF INDIA & CERTIFIED
FUMIGATION OPERATOR BY DIRECTORATE OF PLANT PROTECTION QUARANTINE & STORAGE,
MINISTRY OF AGRICULTURE, GOVERNMENT OF INDIA

FUMIGATION CERTIFICATE			
DPPQS Registration No. 090021105		AFAS ID No. IN - 090 / 91TRPK095PM	
Certificate Number : 2082 / 2011 - 2012		Date of Issue 06.01.2012	
This is to certify that the following regulated articles have been fumigated according to the appropriate procedures to conform to the current phytosanitary requirements of the importing country : USA			
DETAILS OF GOODS			
Description of goods : RANDOM POLISHED GRANITE SLABS		Quantity declared: 07 WOODEN CRATES & 01 BOX	
Distinguishing Marks : INV # SSPL/8154/2011-12 DATED - 03.01.2012		Consignment / Container # MSKU - 395899 - 7	
Port of loading : INDIA		Name of the vessel / Ship : N/A	
Country of Destination : USA		Declared point of Entry : HOUSTON	
Name and address of Exporter		M/s. SMART STONE PVT LTD. 218, BAMMASANDRA, KIADB INDUSTRIAL AREA 3 RD PHASE ANEKAL TALUK BANGALORE-560 099.	
Declared name & address of consignee		AS PER INVOICE	
DETAILS OF TREATMENT			
Name of fumigant: MBr	Date of fumigation : 05.01.2011	Place of fumigation : BANGALORE	
Dosage: 48 gms/Cu Mtr	Duration of fumigation : 24 Hrs	Minimum air temperature : 21°C	
Container pressure test conducted.		X	X N/A
Container has 200mm free air space at top of container.		YES	X N/A
In transit fumigation - needs ventilation at port of discharge.		X	NO N/A
Container / Enclosure has been ventilated to below 5 ppm v/Methyl Bromide.		YES	X X
WRAPPING AND TIMBER			
Has the commodity been fumigated prior to lacquering, varnishing, painting or wrapping?		X	X N/A
Has plastic wrapping been used in the consignment?		X	NO N/A
If yes, has the consignment been fumigated prior to wrapping?		X	X N/A
Or has the plastic wrapping been slashed, opened or perforated in accordance with the wrapping and perforation standard?		X	X N/A
Is the timber in this consignment less than 200 mm thick in one dimension and correctly spaced every 200 mm in height?		YES	X X
ADDITIONAL DECLARATION			
Fumigated under gas proof enclosure.			
I declare that these details are true and correct and the fumigation has been carried out in accordance with the NSPM - 12 / ISPM - 15 / Australian Methyl Bromide Standard.			
 IN-090 MB			
Place: BANGALORE Date : 06.01.2012		 (RAVINDER SINGH) DPPQS Accreditation No. 090021105 AFAS ID No. 91TRPK095PM	

INVOICE

Exporter: SMARTSTONE PVT. LTD. Address: # 218, Bommasandra, KIADB Industrial Area, 3rd Phase, Anekal Taluk, Bangalore - 560 099 Phone No: +91 80 27835367 / 27835368 Fax No.: +91 80 27835147 Email : smartstone@vsnl.net Website: www.smartstoneindia.net			Invoice No.: SSPL/8154/2011-12 Date : 03.01.2012		Exporter's Ref : IEC 0701008121									
BUYER: EXPO GRANITE MARBLE LLC, 1055, W. SAM HOUSTON PARKWAY, SUITE 100, HOUSTON, TEXAS 77043 UNITED STATES OF AMERICA.			DETAILS OF OUR BANK: STATE BANK OF INDIA, N.S. ROAD BRANCH, GILLANDER HOUSE, GROUND FLOOR, 8, N.S. ROAD, KOLKATA - 700 001, WEST BENGAL, INDIA. ACCOUNT NO: 10945134651											
			BUYER'S BANK: CHASE BANK, 546 WEST 19TH STREET, HOUSTON, TX 77008, UNITED STATES OF AMERICA KIND ATTN: AHMAD ELKHATIB											
			Country of Origin of goods: REPUBLIC OF INDIA		Country of Final Destination: USA									
Pre Carriage By: RAIL			Place of Receipt by Pre Carrier: ICD BANGALORE			Terms of Delivery & Payment: F.O.B. (C&I) COST & INSURANCE FROM FACTORY TO WAREHOUSE PAYMENT AT 90 DAYS FROM B/L DATE THROUGH BANK								
Vessel/Flight No.:			Port of Loading: CHENNAI			BUYER'S ORDER NO. : SS 01 DATED : 27.12.2011								
Port of Discharge: HOUSTON			Final Destination: HOUSTON, USA											
SL. NO.	DESCRIPTION OF GOODS	NO. OF CRATES	NO. OF SLABS	QUANTITY (SQ. FT.)	RATE (USD/SFT)	AMOUNT (USD)								
1	RANDOM POLISHED GRANITE SLABS KASHMIR GOLD - 2 CMS STD	4	42	2814.38	4.40	12383.27								
2	RANDOM POLISHED GRANITE SLABS MADURA GOLD - 2 CMS	3	33	1816.26	5.40	9807.80								
3	SAMPLES - 4" X 4" ASSORTED COLOURS - 50 NOS MADE OUT OF WASTE PACKED IN ONE CARDBOARD BOX	1	NIL	NIL	NIL	NIL								
TOTAL		8	75	4630.64		22191.07								
AMOUNT CHARGEABLE IN WORDS USD TWENTY TWO THOUSAND ONE HUNDRED NINETY ONE AND SEVEN CENTS ONLY.														
<table border="1"> <tr> <td>CONTAINER NO. :</td> <td>MSKU395899-7</td> </tr> <tr> <td>CONTAINER TYPE:</td> <td>20 'CT</td> </tr> <tr> <td>OTLU NO.:</td> <td>ML-IN 0329228</td> </tr> <tr> <td>TRUCK NO:</td> <td>KA01-AA-6191</td> </tr> </table>							CONTAINER NO. :	MSKU395899-7	CONTAINER TYPE:	20 'CT	OTLU NO.:	ML-IN 0329228	TRUCK NO:	KA01-AA-6191
CONTAINER NO. :	MSKU395899-7													
CONTAINER TYPE:	20 'CT													
OTLU NO.:	ML-IN 0329228													
TRUCK NO:	KA01-AA-6191													
DECLARATION: We declare that this invoice shows the actual price of the goods described and that all particulars are true and correct.			Signature's For SMARTSTONE PVT. LTD. 											

STATEMENT OF ACCOUNT

STATE BANK OF INDIA
 METAJ SUBHAS ROAD BRANCH
 8 NS. ROAD
 GILLANDER HOUSE,
 Branch Code 144
 Branch Phone 22309436
 IFSC: SBIN0000144
 MICR: 700002070
 Account No.: 10945134651
 Product BR-CC-Stock (SSI)
 Currency INR

SMARTSTONE PVT LTD
 RAMESHWAR APARTMENT FLAND. 5A/19A,
 19A SARAT BOSE ROAD, KOLKATA
 KOLKATA 700020

Date 02/03/2015 No: 16:51:51
 Cleared Balance 35699391Dr

E-Mail
 Uncleared Amount: 000

+MOD Bal 35699391Dr
 Limit: 36000000

Drawing Power 36000000

IntRate 1450% pa.

Nominee Name:

Statement from 01/02/2015 to 28/02/2015

Page: 1

Post Date	Value Date	Details	Chq. No.	Debit	Credit	Balance
		DROUGHT FORWARD :				362335.91Dr
02/02/15	02/02/15	DEBIT		1435.00		363770.91Dr
		05052 TFCPC-KOLKATA				
		: 0505214NC0000851 0				
02/02/15	02/02/15	DEBIT		50.00		363820.91Dr
		05052 TFCPC-KOLKATA				
		: 0505214NC0000851 0				
02/02/15	02/02/15	DEBIT		2100.00		365920.91Dr
		05052 TFCPC-KOLKATA				
		: 0505214NC0000851 0				
02/02/15	02/02/15	DEBIT		653.00		366573.91Dr
		05052 TFCPC-KOLKATA				
		: 0505214NC0000851 0				
02/02/15	02/02/15	DEBIT		1411.00		367984.91Dr
		05052 TFCPC-KOLKATA				
		: 0505214NC0000595 0				
02/02/15	02/02/15	DEBIT		50.00		368034.91Dr
		05052 TFCPC-KOLKATA				
		: 0505214NC0000595 0				
02/02/15	02/02/15	DEBIT		2400.00		370434.91Dr
		05052 TFCPC-KOLKATA				
		: 0505214NC0000595 0				
02/02/15	02/02/15	DEBIT		643.00		371077.91Dr
		05052 TFCPC-KOLKATA				
		: 0505214NC0000595 0				
02/02/15	02/02/15	CREDIT			791000.00	419922.09Cr
02/02/15	02/02/15	CREDIT			665000.00	1084922.09Cr
02/02/15	02/02/15	CAS CHQ XFER WD	690688	1440000.00		355077.91Dr
		CC Multicity Cheque				
		TRF				
		TRF TO 0010842735636				
05/02/15	05/02/15	DEBIT		745.00		355822.91Dr
		05052 TFCPC-KOLKATA				
		: 0505213NC0000842 0				
05/02/15	05/02/15	DEBIT		50.00		355872.91Dr
		05052 TFCPC-KOLKATA				
		: 0505213NC0000842 0				
		CARRIED FORWARD :				3,55,872.91Dr
Statement Summary						
Dr Count 11	Cr Count 2			14,49,537.00		14,56,000.00

Can You Account Open By A Letter Draft of the Bank to be Filled the Tans with Ext Cap.



General Noli USA Inc.

International Freight Forwarders

International Freight Forwarders

General Noli USA Inc.
148-08 Guy R. Brewer Blvd Jamaica
11434 New York
Ph. + 1 718 995 9233
Fax. +1 718 995 8970
E-mail:

HOUSE BILL OF LADING

ORIGINAL

Shipper: SMART STONE PVT LTD., 218 BOMMASANDRA KIADB INDL AREA 3RD PHASE, ANEKAL TALUK ,BANGALORE-560099 INDIA Contact Tel +91 80 27835367 Fax +91 80		Bill of Lading No.: A712005108 FIRST ORIGINAL FMC #: 18143NF	
Consignee: TO ORDER Contact Tel Fax		File Ref.: Q20006 Issued At: HBR Layout, Bangalore 560043	
Notify: EXPO GRANITE MARBLE LLC., 1055,W SAM HOUSTON PARKWAY,SUITE 100 HOURLSON,TX 77043, - U.S.A. Contact Tel Fax		For Delivery apply to: GENERAL NOLI USA - NEW YORK 148-08 Guy R. Brewer Blvd JAMAICA, NY 11413 NY 11413 NY, U.S.A. Contact Tel + 17189959233 Fax +1 7189958970	
Insurance covered by us: Yes No X			
Vessel & Voyage: MAERSK DARTFORD 1202 Port of Discharge: HOUSTON		Port of Loading: CHENNAI Place of Delivery: HOUSTON,TX-USA	
		Shipped on Board Date: 16/01/2012 Place of Receipt: ICD -BANGALORE Pre Carriage: BY RAIL	
MARKS AND NUMBERS SHIPPERS LOAD AND STOW	CTNR # MSKU395899/7	TYPE 20-DR FCL	SEAL 0329228
01 - 07 + 01 BOX	SAID TO CONTAIN WEIGHT/MEASURE		Pkgs
		DESCR. OF GOODS	
		1X20' GP CONTAINER STC RANDOM POLISHED GRANITE SLABS TOTAL 07 WOODEN CRATES & 01 CARDBOARD BOX KASHMIR GOLD -2 CMS STD 42 SLABS--2814.38 SFT MADURA GOLD -2 CMS 33 SLABS--1816.26 SFT TOTAL 75 SLABS -- 4630.64 SFT SAMPLES 4"X4" ASSORTED COLOURS 50 NOS MADE OUT OF WASTE PACKED IN ONE CARDBOARD BOX INV NO:SSPL/8154/2011-12 DT:03.01.2012	
		GWK CY/CY	
		CBMS	
		19500.000	

See attached sheet ...

TOTAL #

8 CRATES

19500.000 KGS

FREIGHT RATES, CHARGES, WEIGHTS SUBJECT TO CORRECTION		FREIGHT COLLECT	
		Received by carrier for shipment by ocean vessel between port of loading and port of discharge, and for arrangement or procurement of pre pre-carriage from place of receipt and on-carrier to place of delivery, where stated above, the goods as specified above in apparent good order and condition unless otherwise stated. The goods to be delivered at the above mentioned port of discharge or place of delivery, whichever applicable, subject always to the exceptions, limitations, conditions and liberties set out on the reverse side hereof, to which the Shipper and/or consignee agrees to acceptation this document. IN WITNESS WHEREOF three (3) original documents have been signed, not otherwise stated above, one of which being accomplished the others shall be void.	
		DATED AT: HBR Layout, Bangalore 560043 ISSUED BY: SAVINO DEL BENE FREIGHT FORWARDERS (INDIA) PVT.LTD	
		ON: 16/01/2012	
TOTAL CHARGES TO BE COLLECTED		Declared value: Read clause concerning extra freight and carrier's limitation of liability on the reverse side hereof.	

DEFINITIONS

"Freight forwarder" (herein called FF) means Multimodal Transport Operator, Agent of the Carrier, NVOCC who issues this BL (or otherwise nominated) and is named on the face of it and assumes liability for the performance of the multimodal transport contract as a carrier.

"Merchant" means and includes the Shipper, the Consignor, the Consignee, the Holder of this BL, the Receiver and the Owner of the goods.

"Consignor" means the person who concludes the multimodal transport contract with the FF.

"Consignee" means the person entitled to receive the goods from the FF.

"Taken in charge" means that the goods have been handed over to and accepted for carriage by the FF at the place of receipt evidenced in this BL.

"Goods" means any property including live animals as well as containers, pallets or similar articles of transport or packaging not supplied by the FF, irrespective of whether such property is to be carried on or under deck.

1) Applicability

Notwithstanding the heading "OCEAN BILL OF LADING" (or otherwise nominated) these conditions shall also apply if more than one mode of transport is used.

2) Issuance of this BL

- By issuance of this BL, the FF:
 - undertakes to perform and/or in his own name to procure the performance of the entire transport, from the place at which the goods are taken in charge (place of receipt evidenced in this BL) to the place of delivery designated in this BL;
 - assumes liability as set out in these conditions.
- Subject to the conditions of this BL, the FF shall be responsible for the acts and omissions of his servants or agents acting within the scope of their employment, or any other person of whose services he makes use for the performance of the contract evidenced by the BL, as if such acts and omissions were his own.

3) Negotiability and Title to the goods

- This BL is issued in a negotiable form unless it is marked "non-negotiable." It shall constitute title to the goods and by endorsement of this BL, the holder shall be entitled to receive or to transfer the goods herein mentioned.
- The information in this BL shall be prima facie evidence of the taking in charge by the FF of the goods as described by such description, including a contrary indication, such as "shipper's weight, load and count," "shipper packed container" or similar expressions, has been made in the printed text or superimposed on this BL. However proof to the contrary shall not be admissible when the BL has been transferred to the consignee for valuable consideration who in good faith has relied and acted thereon.

4) Dangerous Goods and Indemnity

- The Merchant shall comply with rules which are mandatory according to the national law or by reason the International Convention, relating to the carriage of goods of a dangerous nature, and shall in any case inform the FF in writing of the exact nature of the danger, before goods of a dangerous nature are taken in charge by the FF and indicate to him, if need be, the precautions to be taken.
- If the Merchant fails to provide such information and the FF is unaware of the dangerous nature of the goods and the necessary precautions to be taken and if, at any time, they are deemed to be a hazard to life or property, they may at any place be unloaded, destroyed or rendered harmless, as circumstances may require, without compensation. The Merchant shall indemnify the FF against all loss, damage, liability, or expense arising out of their being taken in charge, or their carriage, or of any service incidental thereto. The burden of proving that the FF knew the exact nature of the danger constituted by the carriage of the said goods shall rest on the Merchant.
- If any goods shall become a danger to life or property, they may in like manner be unloaded or landed at any place or destroyed or rendered harmless. If such danger was not caused by the fault and neglect of the FF he shall have no liability and the Merchant shall indemnify him against all loss, damage, liability and expense arising therefrom.

5) Description of Goods and Merchant's Packing and Inspection

- The consignor shall be deemed to have guaranteed to the FF the accuracy at the time the goods were taken in charge by the FF, of all particulars relating to the nature of the goods, their marks, number, weight, volume and quantity and, if applicable, to the dangerous character of the goods, as furnished by him or on his behalf for insertion on the BL. The consignor shall indemnify the FF against all loss, damage and expense resulting from any inaccuracy of such particulars. The Consignor shall remain liable even if the BL has been transferred by him. The right of the FF to such an indemnity shall in no way limit his liability under this BL to any person other than the Consignor.
- The FF shall not be liable for any loss, damage or expense caused by defective or insufficient packing of goods or by inadequate loading or packing without containers or other transport units when such loading or packing has been performed by the Merchant or on his behalf by a person other than the FF, or by the defect or unsuitability of the containers or other transport units supplied by the Merchant, or if supplied by the FF a defect or unsuitability of the container or other transport unit would have been apparent upon reasonable inspection by the Merchant. The Merchant shall indemnify the FF against all loss, damage, liability and expense so caused.

6) Freight Forwarder's Liability

- The responsibility of the FF for the goods under these conditions covers the period from the time the FF has taken the goods in his charge to the time of their delivery.
- The FF shall be liable for loss of or damage to the goods as well as for delay in delivery if the occurrence which caused the loss, damage or delay in delivery took place while the goods in his charge as defined in Clause 2 a, unless the FF proves that no fault or neglect of his own, his servants or agents or any other person referred to in Clause 2 b has caused or contributed to such loss, damage or delay. However the FF shall only be liable for loss of or damage to the goods in delivery if the Consignor has made a declaration of interest in timely delivery which has been accepted by the FF and stated it in this BL.
- Arrival times are not guaranteed by the FF. However, delay in delivery occurs when the goods have not been delivered within the time expressly agreed upon or, in absence of such agreement, within the time which would be reasonable to require of a diligent FF, having regard to the circumstances of the case.
- If the goods have not been delivered within ninety consecutive days following such date of delivery as determined in Clause 6 b, the claimant may, in the absence of evidence to the contrary, treat the goods as lost.
- When the FF establishes that, in the circumstances of the case, the loss or damage could be attributed to one or more causes or events, specified in i-iv of the present clause, it shall be presumed that no such cause, always provided, however, that the claimant shall be entitled to prove that loss or damage was not, in fact, caused wholly or partly by one or more of such causes or events:
 - An Act or omission of the Merchant, or person other than the FF acting on behalf of the Merchant or from whom the FF took the goods in charge;
 - Insufficiency or defective condition of the packaging or marks and/or numbers;
 - Handling, loading, stowage or unloading of the goods by the Merchant or any person acting on behalf of the Merchant;
 - Inherent vice of the goods;
 - Strike, lockout, stoppage or restraint of labour;
- Defences for carriage by sea or inland waterways
 - Notwithstanding Clauses 6 b, 6 c and 6 d the FF shall not be liable for loss, damage or delay in delivery with respect to goods carried by sea or inland waterways when such loss, damage or delay during such carriage has been caused by:
 - Act, neglect, or default of the master, mariner, pilot or the servants of the carrier in the navigation or in the management of the ship;
 - Fire, unless caused by the actual fault or privity of the carrier, however, always provided that whenever loss or damage has resulted from unseaworthiness of the ship, the FF can prove that due diligence has been exercised to make the ship seaworthy at the commencement of the voyage.

7) Paramount Clauses

- These conditions shall only take effect to the extent that they are not contrary to the mandatory provisions of international Conventions or national law applicable to the contract evidenced by this BL.
- The Hague Rules contained in the International Convention for the unification of certain rules relating to BL's, dated Brussels Aug. 25th, 1924, or in those countries where there are already in force the Hague-Visby Rules contained in the Protocol of Brussels, dated Feb. 23rd 1968, as enacted in the Country of Shipment, shall apply to all carriage of goods by sea and also to the carriage of goods by inland waterways and such provisions shall apply to all goods whether carried on deck or under deck.
- The Carriage of Goods by Sea Act of the United States of America (COGSA) shall apply to the carriage of goods by sea, whether on deck or under deck, if compulsorily applicable to this BL, or would be applicable but, for the goods being carried on deck, in accordance with a statement on this BL.

8) Limitation of Freight Forwarder's Liability

- Assessment of compensation for loss of or damage to the goods shall be made by reference to the value of such goods at the place and time they are delivered to the consignee or at the place and time when, in accordance with this BL, they should have been so delivered.
- The value of the goods shall be determined according to the current commodity exchange price or, if there is no such price, according to the current market price or, if there are no such prices, by reference to the normal value of goods of the same name and quality.

- Subject to the provisions of subclauses 8 d to 8 i inclusive, the FF shall in no event be or become liable for the loss of or damage to the goods in an amount exceeding the equivalent of 666.67 Special Drawn Rights per package or unit (where the goods have been packed into sealed container by or on behalf of the Merchant, it is expressly agreed that each container shall constitute one package for the purposes of application of limitation of the FF's liability), or 2 SDR per kilogram of gross weight of the goods lost or damaged, whichever is the higher, unless the nature and value of the goods shall have been declared by the Consignor and accepted by the FF before the goods have been taken in his charge, or the ad valorem freight rate paid and such value is stated in the BL by him, then such declared value shall be the limit.
- Where a container, pallet or similar article of transport is loaded with more than one package or unit, the packages or other shipping units enumerated in the BL as packed in such article of transport are deemed packages or shipping units. Except as aforesaid, such article of transport shall be considered the package or unit.
- Notwithstanding the above mentioned provisions, if the multimodal transport does not, according to the contract, include carriage of goods by sea or inland waterways, the liability of the FF shall be limited to an amount not exceeding 8.33 SDR per kilogram of gross weight of the goods lost or damaged.

- When the loss of or damage to the goods occurred during one particular stage of the multimodal transport, in respect of which an applicable international convention or mandatory national law would have provided another limit of liability if a separate contract of carriage had been made for that particular stage of transport, then the limit of the FF's liability for such loss or damage shall be determined by reference to the provisions of such convention or mandatory national law.
- Unless the nature and value of the goods shall have been declared by the Merchant and inserted in this BL and the ad valorem freight rate paid, the liability of the FF under COGSA where applicable, shall not exceed US\$500.00 per package or, in the case of goods not shipped in packages, per customary freight unit.
- If the FF is liable in respect of loss following from delay in delivery, or consequential loss or damage other than loss of or damage to the goods, the liability of the FF shall be limited to an amount not exceeding the limit.
- The aggregate liability of FF shall not exceed the limits of liability for total loss of the goods.
- The FF is not entitled to the benefit of the limitation of liability if it is proved that the loss, damage or delay in delivery resulted from a personal act or omission of the FF done with the intent to cause such loss, damage or delay or recklessly and with knowledge that such loss, damage or delay would probably result.

9) Applicability to Actions in Tort

These conditions apply to all claims against the FF relating to the performance of the contract evidenced by this BL, whether the claim be founded in contract or in tort.

10) Liability of Servants and Other Persons

- These conditions apply whenever claims relating to the performance of the contract evidenced by this BL are made against any servant, agent or other person (including any independent contractor) whose services have been used in order to perform the contract whether such claims are founded in contract or in tort, and the aggregate liability of the FF and of such servants agents or other persons shall not exceed the limits of clause 8.
- In entering into this contract as evidenced by this BL, the FF to the extent of these provisions, does not only act on his own behalf, but also as agent or trustee for such persons, and such persons shall to this extent be or be deemed to be parties to the contract.
- However, if it is proved that the loss of or such loss or damage to the goods resulted from a personal act or omission of such a person referred to in Clause 10 a, done with intent to cause damage, or recklessly and with knowledge that such damage would probably result, such person shall not be entitled to benefit of limitation of liability provided for in clause 8.
- The aggregate of the amounts recoverable from the FF and the persons referred to in Clauses 2 b and 10 a shall not exceed the limits provided for in these conditions.

11) Method and Route of Transportation

Without notice to the Merchant, the FF has the liberty to carry the goods on or under deck and to choose or substitute the means, route and procedure to be followed in the handling, stowage, stowage and transportation of the goods.

12) Delivery

- Goods shall be deemed to be delivered when they have been handed over or placed at the disposal of the Consignee or his agent in accordance with this BL, or when the goods have been handed over to any authority or other party to whom, pursuant to the law or regulation applicable at the place of delivery, the goods must be handed over, or such other place at which the FF is entitled to call upon the Merchant to take delivery.
- The FF shall also be entitled to store the goods at the sole risk of the Merchant, and the FF's liability shall cease, and the cost of such storage shall be paid, upon demand, by the Merchant to the FF.
- At any time the carriage under this BL, is or is likely to be affected by any hindrance or risk of any kind (including the condition of the goods) not arising from any fault or neglect of the FF or a person referred to in Clause 2 b and which cannot be avoided by the exercise of reasonable endeavours the FF may abandon the carriage of the goods under this BL, and where reasonably possible, place the goods or any part of them at the Merchant's disposal at any place which the FF may deem safe and convenient, whereupon delivery shall be deemed to have been made, and the responsibility of the FF in respect of such goods shall cease. In any event, the FF shall be entitled to full freight under this BL and the Merchant shall pay any additional costs resulting from the above mentioned circumstances.

13) Freight and Charges

- Freight shall be paid in cash, without any reduction or deferment on account of any claim, counterclaim or set-off, whether prepaid or payable at destination. Freight shall be considered as earned by the FF at the time and when the goods have been taken in charge, and not to be returned in any event.
- Freight and all other amounts mentioned in this BL, are to be paid in the currency named in this BL, or, at the FF's option, in the currency of the country of dispatch or destination at the highest rate of exchange for bankers sight bills current for payment freight on the day of dispatch and for freight payable at destination on the day when the Merchant is notified on arrival of the goods there or on the date of withdrawal of the delivery order, whichever rate is higher, or at the option of the FF on the date of this BL.
- All dues, taxes and charges or other expenses in connection with the goods shall be paid by the Merchant. Where equipment is supplied by the FF, the Merchant shall pay all demurrage and charges which are not due to a fault or neglect of the FF.
- The Merchant shall reimburse the FF in proportion to the amount of freight for any costs for deviation or delay or any other increase of costs of whatever nature caused by war, warlike operations, epidemics, strikes, government directions or force majeure.
- The merchant warrants the correctness of the declaration of contents, insurance, weight, measurements and value of the goods but the FF has the liberty to have the contents inspected and the weight, measurements or value verified. If on such inspection it is found that the declaration is not correct it is agreed that a sum equal either to five times the difference between the correct figure and the freight charged, or to double the correct freight less the freight charged, whichever sum is the smaller, shall be payable as liquidated damages to the FF for his inspection costs and losses of freight on other goods notwithstanding any other sum having been stated on this BL, as freight payable.
- Despite the acceptance by the FF of instructions to collect freight, charges or other expenses from any other person in respect of the transport under this BL, the Merchant shall remain responsible for such monies on receipt of evidence of demand and the absence of payment for whatever reason.

- Right of Lien** The FF will exercise a lien on the shipment or on the goods, while in his possession and on any documents relating thereto at any time, for any credit amount due or overdue to the FF from the shipper, sender or any other party, even the consignee or owner of the goods, including freight, storage fees and the cost of recovering same or to prevent deterioration, and may enforce such lien in any reasonable manner which he may think fit.

15) General Average

The Merchant shall indemnify the FF in respect of any claims of a General Average nature which may be made on him and shall provide such security as may be required by the FF in this connection.

16) Notice

- Unless notice of loss of or damage to the goods, specifying the general nature of such loss or damage, is given in writing by the consignee to the FF when the goods are delivered to the consignee in accordance with clause 12, such handing over is prima facie evidence of the delivery by the FF of the goods as described in this BL.
- Where the loss or damage is not apparent, the same prima facie effect shall apply if notice in writing is not given within 3 consecutive days after the day when the goods were delivered to the consignee in accordance with clause 12.

17) Time Bar

- The FF shall, unless otherwise expressly agreed, be discharged of all liability under these conditions unless suit is brought within 9 months after delivery of the goods, or the date when the goods should have been delivered, or the date when in accordance with clause 6 d failure to deliver the goods would give the consignee the right to treat the goods as lost.

18) Partial Invalidity

- If any cause or a part thereof is held to be invalid, the validity of this BL and the remaining clauses or a part thereof shall not be affected.

19) Jurisdiction and applicable law

- Actions against the FF may be instituted only in Genoa Italy and shall be decided according to the law of this country.

MOD/04/2009

Al Hour Stamp Cancelled



For SMARTSTONE PVT LTD

C.E.O



General Noli USA Inc.

International Freight Forwarders

International Freight Forwarders
General Noli USA Inc.
148-08 Guy R. Brewer Blvd Jamaica
11434 New York
Ph. +1 718 995 9233
Fax. +1 718 995 8970
E-mail:

ATTACHED SHEET #1 TO DOCUMENT Number: A712005108

Our Ref:Q20006

Container list:

MARKS AND NUMBERS	CTNR #	TYPE	SEAL	Pkgs	DESCR. OF GOODS	GWK	CBMS
					SB NO:6976425 DT:04.01.2012 IEC NO:0701008121 TOTAL:75 SLABS & 50 SAMPLES NET WT:18500.00 KGS		

STATE BANK OF INDIA
TRANSPORANCE OFFICE KOLKATA
1, SHANKAR DAS, KOLKATA-700001



All our stuffs Cancelled



For SMARTSTONE PVT LTD
Rana
C.E.O

For SMARTSTONE PVT LTD
Rana
C.E.O



General Noli USA Inc.

International Freight Forwarders

International Freight Forwarders

General Noli USA Inc.
148-08 Guy R. Brewer Blvd Jamaica
11434 New York
Ph. + 1 718 995 9233
Fax. +1 718 995 8970
E-mail:

HOUSE BILL OF LADING

ORIGINAL

Shipper: SMART STONE PVT LTD., 218 BOMMASANDRA KIADB INDL AREA 3RD PHASE, ANEKAL TALUK ,BANGALORE-560099 INDIA Contact Tel +91 80 27835367 Fax +91 80		Bill of Lading No.: A712005108 FIRST ORIGINAL FMC #: 18143NF	
Consignee: TO ORDER Contact Tel Fax		File Ref.: Q20006 Issued At: HBR Layout, Bangalore 560043	
Notify: EXPO GRANITE MARBLE LLC., 1055,W SAM HOUSTON PARKWAY,SUITE 100 HOURLSON,TX 77043, - U.S.A. Contact Tel Fax		For Delivery apply to: GENERAL NOLI USA - NEW YORK 148-08 Guy R. Brewer Blvd JAMAICA, NY 11413 NY 11413 NY, U.S.A. Contact Tel + 17189959233 Fax +1 7189958970	
Insurance covered by us: Yes No X			
Vessel & Voyage: MAERSK DARTFORD 1202 Port of Discharge: HOUSTON		Port of Loading: CHENNAI Place of Delivery: HOUSTON,TX-USA	
		Shipped on Board Date: 16/01/2012 Place of Receipt: ICD -BANGALORE Pre Carriage: BY RAIL	
MARKS AND NUMBERS SHIPPERS LOAD AND STOW	CTNR # MSKU395899/7	TYPE 20-DR FCL	SEAL 0329228
01 - 07 + 01 BOX	SAID TO CONTAIN WEIGHT/MEASURE		Pkgs
		DESCR. OF GOODS	
		1X20' GP CONTAINER STC RANDOM POLISHED GRANITE SLABS TOTAL 07 WOODEN CRATES & 01 CARDBOARD BOX KASHMIR GOLD -2 CMS STD 42 SLABS--2814.38 SFT MADURA GOLD -2 CMS 33 SLABS--1816.26 SFT TOTAL 75 SLABS -- 4630.64 SFT SAMPLES 4"X4" ASSORTED COLOURS 50 NOS MADE OUT OF WASTE PACKED IN ONE CARDBOARD BOX INV NO:SSPL/8154/2011-12 DT:03.01.2012	
		GWK CY/CY	
		CBMS	
		19500.000	

See attached sheet ...

TOTAL #

8 CRATES

19500.000 KGS

FREIGHT RATES, CHARGES, WEIGHTS SUBJECT TO CORRECTION		FREIGHT COLLECT	
		Received by carrier for shipment by ocean vessel between port of loading and port of discharge, and for arrangement or procurement of pre pre-carriage from place of receipt and on-carrier to place of delivery, where stated above, the goods as specified above in apparent good order and condition unless otherwise stated. The goods to be delivered at the above mentioned port of discharge or place of delivery, whichever applicable, subject always to the exceptions, limitations, conditions and liberties set out on the reverse side hereof, to which the Shipper and/or consignee agrees to acceptation this document. IN WITNESS WHEREOF three (3) original documents have been signed, not otherwise stated above, one of which being accomplished the others shall be void.	
		DATED AT: HBR Layout, Bangalore 560043 ISSUED BY: SAVINO DEL BENE FREIGHT FORWARDERS (INDIA) PVT.LTD	
TOTAL CHARGES TO BE COLLECTED		ON: 16/01/2012 Declared value: Read clause concerning extra freight and carrier's limitation of liability on the reverse side hereof.	

DEFINITIONS

"Freight forwarder" (herein called FF) means Multimodal Transport Operator, Agent of the Carrier, NVOCC who issues this BL (or otherwise nominated) and is named on the face of it and assumes liability for the performance of the multimodal transport contract as a carrier.

"Merchant" means and includes the Shipper, the Consignor, the Consignee, the Holder of this BL, the Receiver and the Owner of the goods.

"Consignor" means the person who concludes the multimodal transport contract with the FF.

"Consignee" means the person entitled to receive the goods from the FF.

"Taken in charge" means that the goods have been handed over to and accepted for carriage by the FF at the place of receipt evidenced in this BL.

"Goods" means any property including live animals as well as containers, pallets or similar articles of transport or packaging not supplied by the FF, irrespective of whether such property is to be carried on or under deck.

1) Applicability

Notwithstanding the heading "OCEAN BILL OF LADING" (or otherwise nominated) these conditions shall also apply if more than one mode of transport is used.

2) Issuance of this BL

- By issuance of this BL, the FF:
 - undertakes to perform and/or in his own name to procure the performance of the entire transport, from the place at which the goods are taken in charge (place of receipt evidenced in this BL) to the place of delivery designated in this BL;
 - assumes liability as set out in these conditions.
- Subject to the conditions of this BL, the FF shall be responsible for the acts and omissions of his servants or agents acting within the scope of their employment, or any other person of whose services he makes use for the performance of the contract evidenced by the BL, as if such acts and omissions were his own.

3) Negotiability and Title to the goods

- This BL is issued in a negotiable form unless it is marked "non-negotiable." It shall constitute title to the goods and by endorsement of this BL, the holder shall be entitled to receive or to transfer the goods herein mentioned.
- The information in this BL shall be prima facie evidence of the taking in charge by the FF of the goods as described by such description, including a contrary indication, such as "shipper's weight, load and count," "shipper packed container" or similar expressions, has been made in the printed text or superimposed on this BL. However proof to the contrary shall not be admissible when the BL has been transferred to the consignee for valuable consideration who in good faith has relied and acted thereon.

4) Dangerous Goods and Indemnity

- The Merchant shall comply with rules which are mandatory according to the national law or by reason the International Convention, relating to the carriage of goods of a dangerous nature, and shall in any case inform the FF in writing of the exact nature of the danger, before goods of a dangerous nature are taken in charge by the FF and indicate to him, if need be, the precautions to be taken.
- If the Merchant fails to provide such information and the FF is unaware of the dangerous nature of the goods and the necessary precautions to be taken and if, at any time, they are deemed to be a hazard to life or property, they may at any place be unloaded, destroyed or rendered harmless, as circumstances may require, without compensation. The Merchant shall indemnify the FF against all loss, damage, liability, or expense arising out of their being taken in charge, or their carriage, or of any service incidental thereto. The burden of proving that the FF knew the exact nature of the danger constituted by the carriage of the said goods shall rest on the Merchant.
- If any goods shall become a danger to life or property, they may in like manner be unloaded or landed at any place or destroyed or rendered harmless. If such danger was not caused by the fault and neglect of the FF he shall have no liability and the Merchant shall indemnify him against all loss, damage, liability and expense arising therefrom.

5) Description of Goods and Merchant's Packing and Inspection

- The consignor shall be deemed to have guaranteed to the FF the accuracy at the time the goods were taken in charge by the FF, of all particulars relating to the nature of the goods, their marks, number, weight, volume and quantity and, if applicable, to the dangerous character of the goods, as furnished by him or on his behalf for insertion on the BL. The consignor shall indemnify the FF against all loss, damage and expense resulting from any inaccuracy of such particulars. The Consignor shall remain liable even if the BL has been transferred by him. The right of the FF to such an indemnity shall in no way limit his liability under this BL to any person other than the Consignor.
- The FF shall not be liable for any loss, damage or expense caused by defective or insufficient packing of goods or by inadequate loading or packing without containers or other transport units when such loading or packing has been performed by the Merchant or on his behalf by a person other than the FF, or by the defect or unsuitability of the containers or other transport units supplied by the Merchant, or if supplied by the FF a defect or unsuitability of the container or other transport unit would have been apparent upon reasonable inspection by the Merchant. The Merchant shall indemnify the FF against all loss, damage, liability and expense so caused.

6) Freight Forwarder's Liability

- The responsibility of the FF for the goods under these conditions covers the period from the time the FF has taken the goods in his charge to the time of their delivery.
- The FF shall be liable for loss of or damage to the goods as well as for delay in delivery if the occurrence which caused the loss, damage or delay in delivery took place while the goods in his charge as defined in Clause 2 a, unless the FF proves that no fault or neglect of his own, his servants or agents or any other person referred to in Clause 2 b has caused or contributed to such loss, damage or delay. However the FF shall only be liable for loss of or damage to the goods in delivery if the Consignor has made a declaration of interest in timely delivery which has been accepted by the FF and stated it in this BL.
- Arrival times are not guaranteed by the FF. However, delay in delivery occurs when the goods have not been delivered within the time expressly agreed upon or, in absence of such agreement, within the time which would be reasonable to require of a diligent FF, having regard to the circumstances of the case.
- If the goods have not been delivered within ninety consecutive days following such date of delivery as determined in Clause 6 b, the claimant may, in the absence of evidence to the contrary, treat the goods as lost.
- When the FF establishes that, in the circumstances of the case, the loss or damage could be attributed to one or more causes or events, specified in i-iv of the present clause, it shall be presumed that no such cause, always provided, however, that the claimant shall be entitled to prove that loss or damage was not, in fact, caused wholly or partly by one or more of such causes or events:
 - An Act or omission of the Merchant, or person other than the FF acting on behalf of the Merchant or from whom the FF took the goods in charge;
 - Insufficiency or defective condition of the packaging or marks and/or numbers;
 - Handling, loading, stowage or unloading of the goods by the Merchant or any person acting on behalf of the Merchant;
 - Inherent vice of the goods;
 - Strike, lockout, stoppage or restraint of labour;
- Defences for carriage by sea or inland waterways
 - Notwithstanding Clauses 6 b, 6 c and 6 d the FF shall not be liable for loss, damage or delay in delivery with respect to goods carried by sea or inland waterways when such loss, damage or delay during such carriage has been caused by:
 - Act, neglect, or default of the master, mariner, pilot or the servants of the carrier in the navigation or in the management of the ship;
 - Fire, unless caused by the actual fault or privity of the carrier, however, always provided that whenever loss or damage has resulted from unseaworthiness of the ship, the FF can prove that due diligence has been exercised to make the ship seaworthy at the commencement of the voyage.

7) Paramount Clauses

- These conditions shall only take effect to the extent that they are not contrary to the mandatory provisions of international Conventions or national law applicable to the contract evidenced by this BL.
- The Hague Rules contained in the International Convention for the unification of certain rules relating to BL's, dated Brussels Aug. 25th, 1924, or in those countries where there are already in force the Hague-Visby Rules contained in the Protocol of Brussels, dated Feb. 23rd 1968, as enacted in the Country of Shipment, shall apply to all carriage of goods by sea and also to the carriage of goods by inland waterways and such provisions shall apply to all goods whether carried on deck or under deck.
- The Carriage of Goods by Sea Act of the United States of America (COGSA) shall apply to the carriage of goods by sea, whether on deck or under deck, if compulsorily applicable to this BL, or would be applicable but, for the goods being carried on deck, in accordance with a statement on this BL.

8) Limitation of Freight Forwarder's Liability

- Assessment of compensation for loss of or damage to the goods shall be made by reference to the value of such goods at the place and time they are delivered to the consignee or at the place and time when, in accordance with this BL, they should have been so delivered.
- The value of the goods shall be determined according to the current commodity exchange price or, if there is no such price, according to the current market price or, if there are no such prices, by reference to the normal value of goods of the same name and quality.

- Subject to the provisions of subclauses 8 d to 8 i inclusive, the FF shall in no event be or become liable for the loss of or damage to the goods in an amount exceeding the equivalent of 666.67 Special Drawn Rights per package or unit (where the goods have been packed into sealed container by or on behalf of the Merchant, it is expressly agreed that each container shall constitute one package for the purposes of application of limitation of the FF's liability), or 2 SDR per kilogram of gross weight of the goods lost or damaged, whichever is the higher, unless the nature and value of the goods shall have been declared by the Consignor and accepted by the FF before the goods have been taken in his charge, or the ad valorem freight rate paid and such value is stated in the BL by him, then such declared value shall be the limit.
- Where a container, pallet or similar article of transport is loaded with more than one package or unit, the packages or other shipping units enumerated in the BL as packed in such article of transport are deemed packages or shipping units. Except as aforesaid, such article of transport shall be considered the package or unit.
- Notwithstanding the above mentioned provisions, if the multimodal transport does not, according to the contract, include carriage of goods by sea or inland waterways, the liability of the FF shall be limited to an amount not exceeding 8.33 SDR per kilogram of gross weight of the goods lost or damaged.

- When the loss of or damage to the goods occurred during one particular stage of the multimodal transport, in respect of which an applicable international convention or mandatory national law would have provided another limit of liability if a separate contract of carriage had been made for that particular stage of transport, then the limit of the FF's liability for such loss or damage shall be determined by reference to the provisions of such convention or mandatory national law.
- Unless the nature and value of the goods shall have been declared by the Merchant and inserted in this BL and the ad valorem freight rate paid, the liability of the FF under COGSA where applicable, shall not exceed US\$500.00 per package or, in the case of goods not shipped in packages, per customary freight unit.
- If the FF is liable in respect of loss following from delay in delivery, or consequential loss or damage other than loss of or damage to the goods, the liability of the FF shall be limited to an amount not exceeding the limit of the aggregate liability of FF shall not exceed the limits of liability for total loss of the goods.
- The FF is not entitled to the benefit of the limitation of liability if it is proved that the loss, damage or delay in delivery resulted from a personal act or omission of the FF done with the intent to cause such loss, damage or delay or recklessly and with knowledge that such loss, damage or delay would probably result.

9) Applicability to Actions in Tort

These conditions apply to all claims against the FF relating to the performance of the contract evidenced by this BL, whether the claim be founded in contract or in tort.

10) Liability of Servants and Other Persons

- These conditions apply whenever claims relating to the performance of the contract evidenced by this BL are made against any servant, agent or other person (including any independent contractor) whose services have been used in order to perform the contract whether such claims are founded in contract or in tort, and the aggregate liability of the FF and of such servants agents or other persons shall not exceed the limits of clause 8.
- In entering into this contract as evidenced by this BL, the FF to the extent of these provisions, does not only act on his own behalf, but also as agent or trustee for such persons, and such persons shall to this extent be or be deemed to be parties to the contract.
- However, if it is proved that the loss of or such loss or damage to the goods resulted from a personal act or omission of such a person referred to in Clause 10 a, done with intent to cause damage, or recklessly and with knowledge that such damage would probably result, such person shall not be entitled to benefit of limitation of liability provided for in clause 8.
- The aggregate of the amounts recoverable from the FF and the persons referred to in Clauses 2 b and 10 a shall not exceed the limits provided for in these conditions.

11) Method and Route of Transportation

Without notice to the Merchant, the FF has the liberty to carry the goods on or under deck and to choose or substitute the means, route and procedure to be followed in the handling, stowage, stowage and transportation of the goods.

12) Delivery

- Goods shall be deemed to be delivered when they have been handed over or placed at the disposal of the Consignee or his agent in accordance with this BL, or when the goods have been handed over to any authority or other party to whom, pursuant to the law or regulation applicable at the place of delivery, the goods must be handed over, or such other place at which the FF is entitled to call upon the Merchant to take delivery.
- The FF shall also be entitled to store the goods at the sole risk of the Merchant, and the FF's liability shall cease, and the cost of such storage shall be paid, upon demand, by the Merchant to the FF.
- At any time the carriage under this BL, is or is likely to be affected by any hindrance or risk of any kind (including the condition of the goods) not arising from any fault or neglect of the FF or a person referred to in Clause 2 b and which cannot be avoided by the exercise of reasonable endeavours the FF may abandon the carriage of the goods under this BL, and where reasonably possible, place the goods or any part of them at the Merchant's disposal at any place which the FF may deem safe and convenient, whereupon delivery shall be deemed to have been made, and the responsibility of the FF in respect of such goods shall cease. In any event, the FF shall be entitled to full freight under this BL and the Merchant shall pay any additional costs resulting from the above mentioned circumstances.

13) Freight and Charges

- Freight shall be paid in cash, without any reduction or deferment on account of any claim, counterclaim or set-off, whether prepaid or payable at destination. Freight shall be considered as earned by the FF at the time and when the goods have been taken in charge, and not to be returned in any event.
- Freight and all other amounts mentioned in this BL, are to be paid in the currency named in this BL, or, at the FF's option, in the currency of the country of dispatch or destination at the highest rate of exchange for bankers sight bills current for payment on the day of dispatch and for freight payable at destination on the day when the Merchant is notified on arrival of the goods there or on the date of withdrawal of the delivery order, whichever rate is higher, or at the option of the FF on the date of this BL.
- All dues, taxes and charges or other expenses in connection with the goods shall be paid by the Merchant. Where equipment is supplied by the FF, the Merchant shall pay all demurrage and charges which are not due to a fault or neglect of the FF.
- The Merchant shall reimburse the FF in proportion to the amount of freight for any costs for deviation or delay or any other increase of costs of whatever nature caused by war, warlike operations, epidemics, strikes, government directions or force majeure.
- The merchant warrants the correctness of the declaration of contents, insurance, weight, measurements and value of the goods but the FF has the liberty to have the contents inspected and the weight, measurements or value verified. If on such inspection it is found that the declaration is not correct it is agreed that a sum equal either to five times the difference between the correct figure and the freight charged, or to double the correct freight less the freight charged, whichever sum is the smaller, shall be payable as liquidated damages to the FF for his inspection costs and losses of freight on other goods notwithstanding any other sum having been stated on this BL, as freight payable.
- Despite the acceptance by the FF of instructions to collect freight, charges or other expenses from any other person in respect of the transport under this BL, the Merchant shall remain responsible for such monies on receipt of evidence of demand and the absence of payment for whatever reason.

- Right of Lien** The FF will exercise a lien on the shipment or on the goods, while in his possession and on any documents relating thereto at any time, for any credit amount due or overdue to the FF from the shipper, sender or any other party, even the consignee or owner of the goods, including freight, storage fees and the cost of recovering same or to prevent deterioration, and may enforce such lien in any reasonable manner which he may think fit.

15) General Average

The Merchant shall indemnify the FF in respect of any claims of a General Average nature which may be made on him and shall provide such security as may be required by the FF in this connection.

16) Notice

- Unless notice of loss of or damage to the goods, specifying the general nature of such loss or damage, is given in writing by the consignee to the FF when the goods are delivered to the consignee in accordance with clause 12, such handing over is prima facie evidence of the delivery by the FF of the goods as described in this BL.
- Where the loss or damage is not apparent, the same prima facie effect shall apply if notice in writing is not given within 3 consecutive days after the day when the goods were delivered to the consignee in accordance with clause 12.

17) Time Bar

The FF shall, unless otherwise expressly agreed, be discharged of all liability under these conditions unless suit is brought within 9 months after delivery of the goods, or the date when the goods should have been delivered, or the date when in accordance with clause 6 d failure to deliver the goods would give the consignee the right to treat the goods as lost.

18) Partial Invalidity

If any cause or a part thereof is held to be invalid, the validity of this BL and the remaining clauses or a part thereof shall not be affected.

19) Jurisdiction and applicable law

- Actions against the FF may be instituted only in Genoa Italy and shall be decided according to the law of this country.

MOD/04/2009

Al Hour Stamp Cancelled



For SMARTSTONE PVT LTD

C.E.O



General Noli USA Inc.

International Freight Forwarders

International Freight Forwarders
General Noli USA Inc.
148-08 Guy R. Brewer Blvd Jamaica
11434 New York
Ph. +1 718 995 9233
Fax. +1 718 995 8970
E-mail:

ATTACHED SHEET #1 TO DOCUMENT Number: A712005108

Our Ref:Q20006

Container list:

MARKS AND NUMBERS	CTNR #	TYPE	SEAL	Pkgs	DESCR. OF GOODS	GWK	CBMS
					SB NO:6976425 DT:04.01.2012 IEC NO:0701008121 TOTAL:75 SLABS & 50 SAMPLES NET WT:18500.00 KGS		

STATE BANK OF INDIA
TRANSPORANCE OFFICE KOLKATA
1, SHANKAR DAS, KOLKATA-700001



All our stuffs Cancelled



For SMARTSTONE PVT LTD
Rana
C.E.O

For SMARTSTONE PVT LTD
Rana
C.E.O



REGD. OFFICE : # 218, Bommasandra, KIADB Industrial Area, 3rd Phase, Anekal Taluk, Bangalore - 560 099, INDIA.
Tel : +91 80 27835367, 27835368 Fax : +91 80 27835147 E-mail : smartstone@vsnl.net Website : www.smartstoneindia.net

REF NO: 405

KOLKATA : 16.01.2012

BILL OF EXCHANGE FOR USD 22191.07

At 90 Days, from the Date of Bill of Lading pay this FIRST Bill of Exchange (Second of the same tenor and date being unpaid) to the order of State Bank of India, N. S. Road Branch, Gillander House, Ground Floor, 8, N.S. Road, Kolkata – 700001, India, the sum of USD 22191.07 (U.S. Dollars Twenty Two Thousand One Hundred Ninety One and Seven Cents Only).

Value received against shipment of ONE container containing Random Polished Granite Slabs from Bangalore, India to Houston, United States of America as per our Invoice no.: SSPL/8154/2011-12 Dated 03.01.2012 for USD 22191.07 and Bill of Lading No. A712005108 dated 16.01.2012 of General Noli USA INC.

For Smartstone Private Limited

A handwritten signature in black ink, appearing to read 'R K Mittal', is written over a horizontal line.

(R K MITTAL)
C.E.O.

TO:
EXPO GRANITE MARBLE LLC,
1055, W SAM HOUSTON PARKWAY,
SUITE 100, HOUSTON,
TEXAS - 77043,
UNITED STATES OF AMERICA,



REGD. OFFICE : # 218, Bommasandra, KIADB Industrial Area, 3rd Phase, Anekal Taluk, Bangalore - 560 099, INDIA.
Tel : +91 80 27835367, 27835368 Fax : +91 80 27835147 E-mail : smartstone@vsnl.net Website : www.smartstoneindia.net

REF NO: 405

KOLKATA : 16.01.2012

BILL OF EXCHANGE FOR USD 22191.07

At 90 Days, from the Date of Bill of Lading pay this SECOND Bill of Exchange (First of the same tenor and date being unpaid) to the order of State Bank of India, N. S. Road Branch, Gillander House, Ground Floor, 8, N.S. Road, Kolkata – 700001, India, the sum of USD 22191.07 (U.S. Dollars Twenty Two Thousand One Hundred Ninety One and Seven Cents Only).

Value received against shipment of ONE container containing Random Polished Granite Slabs from Bangalore, India to Houston, United States of America as per our Invoice no.: SSPL/8154/2011-12 Dated 03.01.2012 for USD 22191.07 and Bill of Lading No. A712005108 dated 16.01.2012 of General Noli USA INC.

For Smartstone Private Limited

A handwritten signature in dark ink, appearing to read "R K Mittal", is written over a horizontal line.

(R K MITTAL)
C.E.O.

TO:
EXPO GRANITE MARBLE LLC,
1055, W SAM HOUSTON PARKWAY,
SUITE 100, HOUSTON,
TEXAS - 77043,
UNITED STATES OF AMERICA,



THE NEW INDIA ASSURANCE CO. LTD.
(Wholly owned by the Govt. of India)

MARINE CARGO SPECIFIC VOYAGE POLICY

Customer ID	: PO06084023
Insured's Details	
Insured Name	: M/SMART STONE PVT LTD(PO06084023)
Address	: #218, KIADB INDSL AREA, ANEKAL TQ, BANGALORE BANGALORE, KARNATAKA, 560100
Phone No	:
E-mail/Fax	: /
PAN No	:
Issuing Office Details	
Office Code	: BOMMASANDRA BRANCH (670302)
Address	: KIADB COMPLEX, 1ST FLOOR, HOSUR MAIN ROAD, BOMMASANDRA,
Phone No	: 7832183
E-mail/Fax	: / 7832920
S.Tax Regn. No	: AAACN4165CST178

Policy Details	
Policy Number	: 67030221110100000309
Period of Insurance	: From: 03/01/2012 02:27:42 PM
Date of Proposal	: 03-Jan-12
Prev. Policy no.	: NA
Client Type	: Non-Corporate
Business Source Code	
Dev.Off./Broker	: MR. R VENUGOPAL (1D7821769)
Agent/Bancassurance	: S B REKHA (1D7816446)
Phone No	: 9901409792 / NA
E-mail/Fax	: /
Financier(s) Details	
Sl. No.	Name of the Financiers

Premium:	Service Tax:	Stamp Duty	Total (Rs.)	Rupees (in words)	Receipt No. & Date:
As Agreed	As Agreed	As Agreed	As Agreed	As Agreed	67030281110000009 122 - 03/01/12

Co-Insurance Details				
Incoming/Outgoing	Company	Office Code	% of Share	Premium Share (Rs.)
N/A	NEW INDIA ASSURANCE CO. LTD.	N/A	100	As Agreed

WHEREAS the ASSURED named in the schedule hereto have represented to THE NEW INDIA ASSURANCE COMPANY LIMITED (hereinafter called "company") that they are interested in or duly authorized to make the insurance mentioned and have paid or agreed to pay the premium hereinafter stated. THE COMPANY HEREBY PROMISES AND AGREES with the Assured, their Executors, Administrators and Assigns that the company will insure against loss damage liability or expenses subject to Clause, Endorsement, Conditions and Warranties contained in the schedule.

Sum Insured(Rs)	: 1318150	Sum Insured in Foreign Currency	: NA
Duty Sum Insured(Rs)	: 0	Increased Value Sum Insured(Rs)	: 0
RR/LR/BL/AWB	: Bill of Lading(BL)	Date	: NA
Bill Number	: NA	Marks and nos	: NA
Basis of Valuation + % Extra	: CF + 10	Reg.Post/Courier	: Not Applicable
Date of Sailing	: NA	Transit Type	: Sea Export
Invoice No	: 8154	Invoice Date	: 03/01/2012
Days of Storage	: NA	Place of Storage	: NA
Excess	: 5 % of Claim Subject to minimum of Rs.8000	Vessel Name	: To be Advised

Journey From	Journey To	Transport Mode
M/S SMARTSTONE PVT. LTD. KIADB INDL. AREA BANGALORE	HOUSTAN TEXAS, USA	Vessel/Rail/Road

Sr No	Packaging Description	Commodity Description
-------	-----------------------	-----------------------

Policy No. : 67030221110100000309 Document generated by 13396 at null.

Regd. & Head Office: New India Assurance Bldg., 87 M.G. Road, Fort, Mumbai - 400 001; TOLL FREE No. 1 800 209 1415.

For redressal of your grievance, if any, you may approach any one of the following offices- 1. Policy Issuing office 2. Regional office 3. Head office. In case, you are not satisfied with our own grievance redressal mechanism; you may also approach Insurance Ombudsman. For details of our office addresses and addresses of office of Insurance Ombudsman, please visit our website <http://newindia.co.in>.



THE NEW INDIA ASSURANCE CO. LTD.
(Wholly owned by the Govt. of India)

1	PROFESSIONALLY AND SECURELY PACKED- TRANSITWORTHY.	ON CONSIGNMENT SAID TO CONTAIN RANDOM POLISHED GRANITE SLABS KASHMIR GOLD -2CMS MADURA GOLD 2 CM, CM,STD/SAMPLES 4"X4"ASSORTED COLORS 100 NOS MADE OF WASTE PACKED IN ONE CARDBOARD BOXAS PER INV. NO. SSPL/8154/2011-12 DATED 03.01.2012
Sr No.	RISK COVERED	
1	WAR&SRCC	
2	ICC-A	
Terms of Insurance		As per the following clauses written hereunder, current on date of sailing or dispatch and/or otherwise stated and attached hereto.
Conditions	Institute Cargo Clauses (A)	
Conditions	Institute War Clauses (Cargo) & Institute Strike Clauses (Cargo)	
Special Condition	:	WARRENTED THAT CONSIGNMENT H AS NOT LEFT AT THE TIME OF TAKING POLICY

Subject to ISM Code Endorsement as attached

SURVEY AND CLAIMS SETTLEMENT:

In the event of loss or damage which may result in a claim under this Insurance immediate notice must be given to :

Address :W K WEBSTER & CO , (SA00000020)
WALSINGHAM HOUSE,SEETHING LANE , LONDON EC3N 4DL
UNIED KINGDOM,

Tel :4402083007744, 4402082697581, 4407715003651

Fax :4402083091266

Email :KWright@wkwebster.com, cosman@wkwebster.com

Claim Payable By:

In the event of loss or damage which may result in a claim under this Insurance immediate notice must be given to:

Address :W K WEBSTER & CO , (SA00000020)
WALSINGHAM HOUSE,SEETHING LANE , LONDON EC3N 4DL
UNIED KINGDOM,

Tel :4402083007744, 4402082697581, 4407715003651

Fax :4402083091266

Email :KWright@wkwebster.com, cosman@wkwebster.com

In witness whereof the undersigned being duly authorised by the Insurers and on behalf of the Insurers has (have) hereunder set his (their) hand(s) on this 03rd day of JANUARY ,2012.

For and on behalf of
The New India Assurance Company Limited

Duly Constituted Attorney(s)



Policy No. : 6703022110100000309 Document generated by 13396 at null.

Regd. & Head Office: New India Assurance Bldg., 87 M.G. Road, Fort, Mumbai - 400 001. TOLL FREE No. 1 800 209 1415.

For redressal of your grievance, if any, you may approach any one of the following offices- 1. Policy issuing office 2. Regional office 3. Head office. In case, you are not satisfied with our own grievance redressal mechanism; you may also approach Insurance Ombudsman. For details of our office addresses and addresses of office of Insurance Ombudsman, please visit our website <http://newindia.co.in>.



THE NEW INDIA ASSURANCE CO. LTD.
(Wholly owned by the Govt. of India)

ADJUSTMENT VOUCHER

Issuing Office : BOMMASANDRA BRANCH (670302)
Address : KIADB COMPLEX, 1ST FLOOR, HOSUR MAIN ROAD, BOMMASANDRA,

BOMMASANDRA INDUSTRIAL ESTATE

Phone : 7832183
Email :
Fax : 7832920

Collection Number : 67030281110000009122
Collection Date : 03/01/2012
Business Source Code : 1D7821769

Received with thanks from M/SMART STONE PVT LTD a sum of Rs 1748.00, RUPEES ONE THOUSAND SEVEN HUNDRED FORTY-EIGHT ONLY.

The amount received/Adjusted is towards -

Policy No.	A/C Description	Amount (Rs.)	A/C Code	Sub A/C Code
67030221110100000309	Cash Deposit Account-670302	1748.00	5076.670302	CD0000098025

Total = 1748.00

Stamp Duty = 1

Your Payment/Adjustment Details are as under -

Mode	Amount (Rs.)	Cheque No.	Cheque Date	Drawee Bank	Drawee Branch	Reference No.	Scroll/B G/APD Balance
Advance Premium Deposit	1748.00	N.A.	N.A.	N.A.	N.A.	6703021110011874	9280.00

Total = 1748.00

Cashier's Initial

Authorised Signatory

Note -

Please quote the Policy Number, Collection Number and date in all future correspondence

1 results

#	Business	<u>China Bond</u>	<u>Phone /</u>	<u>Distance</u>
		<u>Rider</u>	<u>International</u>	<u>(mi)</u>
		<u>Effective Date</u>	<u>Phone</u>	
	GENERAL NOLI USA, INC.			
	JAMAICA, NY 11434			
	Organization No. : 018143			
	License No. : 018143			
1	Trade Name(s) : GENERAL FREIGHT		(718) 995-9233	8348.7
	Full Address : 148-08 GUY R. BREWER BLVD.			
	2ND FLOOR			
	JAMAICA, NY 11434			
	UNITED STATES			

3 results

#	Business	<u>China Bond</u>	<u>Phone /</u>	<u>Distance</u>
		<u>Rider</u>	<u>International</u>	<u>(mi)</u>
		<u>Effective Date</u>	<u>Phone</u>	
SAVINO DEL BENE DO BRASIL LTDA.				
SAO PAULO/SP 04547-006				
Organization No. : 020244				
License No. :				
1	Trade Name(s) : N/A			9022.1
Full Address : RUA GOMES DE CARVALHO 1581-3RD				
FLOOR				
SAO PAULO/SP 04547-006				
BRAZIL				
SAVINO DEL BENE SPA				
SCANDICCI (FLORENCE) 50018				
Organization No. : 010348				
License No. :				
2	Trade Name(s) : N/A		0039-055-52191	3746.6
Full Address : VIA DEL BOTEGHINO, 24/26				
SCANDICCI (FLORENCE) 50018				
ITALY				
SAVINO DEL BENE U.S.A., INC.				
JAMAICA, NY 11413				
Organization No. : 018653				
License No. : 018653				
3	Trade Name(s) : N/A	11-26-2012	(718) 656-5971	7340.6
Full Address : 149-10 183RD STREET				
JAMAICA, NY 11413				
UNITED STATES				